

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

AMENDED
COMPLAINT

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CLASS ACTION
COMPLAINT

CHARLES MEYERS, JOHN BAKER,
JUSTIN STREKAL and MILES WALSH
(CLASS REPRESENTATIVES)

14CV9142-ALC

PLAINTIFFS,

JURY TRIAL
DEMANDED

vs.

ECF CASE

CITY OF NEW YORK; MICHAEL
RUBENS BLOOMBERG, individually and
in his official capacity as former Mayor of
the City of New York; former NYPD Chief
of Department JOSEPH J. ESPOSITO,
individually and in his official capacity;
former NYPD Commissioner RAYMOND
KELLY, individually and in his official
capacity; NYPD Patrol Officers FREDDY
YNOA Shield 18851, HANS FRANCOIS
Shield 25825, JOHN ZARANIS Shield
09645, VASILE DUBOVICI Shield 28892,
Officer DOES 1-100,

SUBJECT TO THE
PLAN FOR CERTAIN §
1983 CASES AGAINST
THE CITY OF NEW
YORK

Defendants.

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Pursuant to the Court’s Order filed October 27, 2015, granting leave to amend claims pleaded in the initial Complaint and dismissed without prejudice, and Fed.R.Civ.P. Rule 15, PLAINTIFFS CHARLES MEYERS (“Plaintiff MEYERS”), MILES WALSH (“Plaintiff WALSH), and JOHN BAKER (“Plaintiff BAKER), each on their own individual behalf and as class representatives on behalf of all others similarly situated (collectively “PLAINTIFFS”), by their attorney, Paul L. Mills, Esq., for this Complaint, complaining of the defendants, respectfully **amend their initial Complaint, rendering amended portions in boldface, to allege as follows:**

AMENDED COMPLAINT

(Constitutional and civil rights class action lawsuit)

A. PRELIMINARY STATEMENT

1. This case concerns the eviction by the City of New York, through its NYPD, without a prior court ruling, of Occupy Wall Street demonstrators (“OWS”) visiting and camping in a defined area in the Manhattan Financial District’s Zuccotti Park on November 15, 2011 (the “Eviction”).

2. It charges that the City and its police set themselves up as a court, and

then acted on their own decision to evict these people from their shelters, and asks whether, absent a genuine emergency, a real court should subsequently condone this untrammelled exercise of government power.

3. Here, New York City claimed that a *fire hazard* justified emergency, middle-of-the-night evacuation, as if Zuccotti Park were actually *on fire*. PLAINTIFFS submit that the offer of this purported is tantamount to an admission of culpability.

4. Two lower state courts subsequently considered the question of the lawfulness of rules that the demonstrators were alleged to be violating, and the prima facie validity of low-level, non-criminal charges against them arising from the alleged violation of those rules.

5. However, no federal court has considered the question of whether this privately-owned park, open to the public 24 hours a day by agreement between the owners and the government, qualified as a traditional public forum, and, if so, whether the City could still do as it pleased with the OWS demonstrators it found to be offensive.

6. No court has considered the question of whether, even if Zuccotti Park were not a traditional public forum, the government's decision, to evict OWS without a hearing or court order – without due process of law, was constitutional.

7. PLAINTIFFS bring this action in order to test the lawfulness of these

actions, which they believe threaten the survival of First Amendment activity in a growing number of privately-owned public spaces throughout the country.

B. JURISDICTION AND VENUE

8. This action arises under the First, Fourth and 14th Amendments to the United States Constitution and under 42 U.S.C. §§ 1983 and 1988.

9. The jurisdiction of this Court is predicated upon 28 U.S.C. §§ 1331 (federal question), and 1343 (federal civil rights).

10. The Southern District of New York is the proper venue for this lawsuit because the cause of action arose in New York County, in the State of New York. The acts complained of occurred in the City of New York and in the Southern District of New York. Venue is lodged in this Court pursuant to 28 U.S.C. § 1391(b).

C. JURY DEMAND

11. PLAINTIFFS demand trial by jury in this action on all issues so triable.

D. PARTIES

INDIVIDUAL PLAINTIFFS

12. Plaintiff MEYERS is a citizen and resident of the United States of America.

13. Plaintiff WALSH is a citizen and resident of the United States of America.

14. Plaintiff BAKER is a citizen and resident of the United States of America.

15. Plaintiff STREKAL is a citizen and resident of the United States of America.

CLASS PLAINTIFFS

16. The proposed class of plaintiffs is: All persons whom, on November 15, 2011, the Defendants, [] during and as a result of NYPD's eviction of Zuccotti Park occupants and residents, were subjected to arrest and criminal prosecution resulting in a termination favorable to the class member plaintiffs, as set forth herein.

DEFENDANTS

16. Defendant CITY OF NEW YORK is a municipal corporation which, under the administration of its former Mayor, Defendant MICHAEL RUBENS BLOOMBERG (“Defendant BLOOMBERG”) and through its New York Police Department (“NYPD”), operated a number of subordinate law enforcement facilities. The NYPD, through its senior officials, including Defendants Former NYPD Police Commissioner RAYMOND KELLY (“Defendant KELLY”) and Former Chief of Department JOSEPH J. ESPOSITO (“Defendant ESPOSITO”), in each facility, and in its specialized units, promulgated and implemented policies, including those with respect to arrests, and the reporting and investigation of lawful and unlawful arrests, by uniformed officers including the individual NYPD officers who are defendants in this action. In addition, senior officials in the NYPD were aware of and tolerated certain practices by subordinate officers, including some that were inconsistent with formal or stated policy. These practices, because they were widespread, long-standing, and/or deeply embedded in the culture of the agency, constituted unwritten NYPD policies, practices and customs.

17. At all times relevant hereto, Defendant MICHAEL RUBENS

BLOOMBERG was the elected, appointed and sworn Mayor of Defendant CITY OF NEW YORK, acting in the capacity of agent, servant, and employee of Defendant CITY OF NEW YORK, within the scope of their employment as such, and acting under color of state law. At all times relevant, he was the chief policymaker for the CITY OF NEW YORK and its departments and agencies, including the NYPD. Mayor BLOOMBERG directed, approved and ratified the unconstitutional conduct challenged herein. He is sued in his official and individual capacities.

18. At all times relevant hereto, Defendant RAYMOND W. KELLY was the appointed and sworn Commissioner of the NYPD, which is an agency of the City of New York, acting in the capacity of agent, servant, and employee of Defendant CITY OF NEW YORK, within the scope of his employment as such, and acting under color of state law. Defendant KELLY was a policymaker for the CITY of NEW YORK and NYPD. Defendant KELLY directed, approved and ratified the unconstitutional conduct challenged herein. He is sued in his official and individual capacities.

19. At all times relevant hereto, Defendant JOSEPH J. ESPOSITO was the appointed and sworn NYPD Chief of Department, acting in the capacity of agent, servant, and employee of Defendant CITY OF NEW YORK, within the scope of his employment as such, and acting under color of state law. Defendant

ESPOSITO was a policymaker for the CITY of NEW YORK and NYPD.

Defendant ESPOSITO directed, approved and ratified the unconstitutional conduct challenged herein. He is sued as both an individual and in his official capacity.

20. At all times relevant hereto, each Defendant NYPD Patrol Officer, whether identified herein by name and/or shield number as NYPD Patrol Officers FREDDY YNOA Shield 18851, HANS FRANCOIS Shield 25825, JOHN ZARANIS Shield 09645, VASILE DUBOVICI Shield 28892, or referred to as DOES 1-100 and identified herein as such, was a sworn and appointed patrol officer of the NYPD, acting in the capacity of agent, servant, and employee of Defendant CITY OF NEW YORK, within the scope of their employment as such, and acting under color of state law, and acting upon their own individual, independent authority and exercising their own individual, independent judgment. Each such individual Defendant NYPD Patrol Officer is sued in their individual capacity.

21. At all times relevant hereto, each of the individual defendant NYPD officers was present during, personally ordered, participated in, or assisted in PLAINTIFFS' arrests as set forth in this Complaint; and was a sworn and appointed patrol officer of the NYPD.

22. In the case of Defendants KELLY and ESPOSITO, each of the individual defendants was a sworn and appointed senior officer of the NYPD, or,

in the case of Defendant BLOOMBERG, was the elected, appointed and sworn Mayor of the CITY OF NEW YORK, acting in the capacity of agent, servant, and employee of Defendant CITY OF NEW YORK, within the scope of their employment as such; and was acting under color of state law.

F. STATEMENT OF FACTS

EVICTION, ARRESTS, AND PROSECUTIONS

1. Introduction

23. Plaintiffs MEYERS, BAKER, STREKAL and WALSH, as well as the class members on whose behalf they bring this action (“PLAINTIFFS”) were arrested while participating in the Occupy Wall Street (“OWS”) movement, or attempting to participate, or observing their activities. The event was a peaceful, law-abiding expression of thought, political opinion, and feeling, through speech, discussion, study, music, theater, graphic art, dance, and the participants’ manifest physical presence, which took place at Zuccotti Park (the “Park”).

24. Zuccotti Park, consisting of a small plaza in downtown Manhattan’s financial district, had become the focus of international media scrutiny as

demonstrators discussed and protested government policies in favor of corporate gain at the expense of private citizens.

25. Zuccotti Park was located within an area of Lower Manhattan in New York City bounded by Broadway, Liberty Street, Trinity Place and Cedar Street.

26. Plaintiffs residence in Zuccotti Park was, as set forth below, 1st Amendment Activity in a traditional public forum.

27. Prohibitions against the use of tents, tarps, sleeping bags, and bedrolls, particularly during the winter months, were an unlawful *de facto* prohibition against Plaintiffs' 1st Amendment-protected activities in Zuccotti Park.

28. Defendants also failed to accommodate Plaintiffs' 1st Amendment rights by narrowing their prohibitions to what might have been reasonably necessary to accommodate legitimate state interests, rather than rendering 1st Amendment activity impossible by outlawing the use of tents and sleeping bags altogether during the winter months.

29. Defendants failed even to lawfully apply for local government authorization to institute their unlawful prohibitions against Plaintiffs' 1st Amendment-protected activities in Zuccotti Park, in violation of Plaintiffs' 4th and 14th Amendment rights as well, as set forth below.

2. Easement

a. Express Easement

i. New York City POPS Program

30. From 1961 through November 14, 2011, New York City encouraged the development of hundreds of privately-owned public spaces (“POPS”) across the five boroughs.

31. These spaces were created by granting zoning incentives to the private developers of office and residential buildings in exchange for the creation of spaces that are legally required to be open and accessible to the public.

32. At all times pertinent to this Amended Complaint, over 500 of these public spaces existed throughout the City, totaling 3.5 million square feet of public space.

33. In exchange for these valuable zoning concessions, private owners of POPS forfeited their traditional rights as property owners and had to abide by legal constraints governing these public spaces.

34. In return for a zoning incentive, the developer agreed to allocate a portion of its lot or building to be used as a POPS, to construct and maintain the space according to specified design standards, and to allow access to and use of the space by members of the public.

35. Although the POPS continued, by definition, to be “privately owned,” the owner had legally ceded significant rights associated with its private property, including the right to exclude others, and could not treat this part of its property any way it wished.

36. As de facto third party beneficiaries, members of the public participated in the exchange by gaining their own rights to this private property.

37. The contracts creating POPS contained explicit obligations mandating that the private owner create and maintain the POPS as a publicly open and accessible space.

38. As a result of these contractual obligations and the existence of the third party beneficiary relationship, the private owner of the POPS was precluded from acting unilaterally and managing the POPS like private property.

39. Despite these clear contractual obligations, for decades private owners unlawfully treated POPS like private property.

40. In 1996, the City began a three-and-a-half year project to catalogue all POPS in New York City and to determine whether owners were fulfilling their responsibility to keep them open and accessible to the public.

41. Subsequent to this survey, the New York City Council enacted a sweeping and comprehensive rezoning scheme governing POPS, in the form of provisions to the New York City Zoning Resolution in 2007.

42. When presenting the 2007 Zoning Resolution provisions to the City Council, the New York City Planning Commission (“CPC”) noted that the impediments to public access identified in the comprehensive survey motivated the revision of the “outdated and inconsistent standards in the existing zoning text.” See CPC Report, Cal. No. 21, N070497 ZRY (Sept. 19, 2007) at 10, excerpts attached as Exhibit A.

43. Consequently, a primary concern of the 2007 provisions was ensuring that public access to POPS was not unlawfully restricted by the private owners of these spaces.

ii. Zuccotti Park Agreement

44. As to Zuccotti Park, the contract was in the form of a “special zoning permit” containing provisions requiring that the POPS be established

and maintained for the public. See, City of New York Special Zoning Permit, CP-20222, No. 4, p.215 (March 20, 1968) (requiring Zuccotti Park to be a “permanent open park” for the “public benefit”), attached as Exhibit B.

45. As noted above, the public was a direct and intended third party beneficiary of this exchange.

46. The negotiation process began when, on February 16, 1968, the United States Steel Corporation (“U.S. Steel”) filed an application with the New York City Planning Commission for a special permit in connection with its development of property bounded by Broadway, Cedar Street, Church Street and Cortlandt Street in Manhattan.

47. The property owned by U.S. Steel consisted of two entire city blocks.

48. Under the proposed special permit, U.S. Steel would be permitted to erect an office tower on the northerly block, bounded by Broadway, Cortlandt Street, Church Street and Liberty Street, without regard for applicable height and setback regulations.

49. The benefits to U.S. Steel included a floor area bonus. See CP-20222, id., “The applicants propose to erect a 54-story office building on the northerly block. The floor area will exceed that which would be permitted by right for this block alone in the C5-5 district but will not exceed the total floor

area permitted for the two blocks as a whole.”

50. In return for being freed from the height and setback regulations that would otherwise limit the size of the proposed office tower, and floor area bonus, U.S. Steel promised to develop the southerly block, bounded by Broadway, Liberty Street, Church Street and Cedar Street, as a “permanent open park.”

51. To memorialize the promises it had made to secure the special permit, U.S. Steel entered into an agreement with the City of New York dated May 13, 1968. See attached U.S. Steel Agreement, incorporating the terms of a special permit governing construction of the building and plaza. Exhibit C: U.S. Steel Agreement.

52. In the agreement, U.S. Steel promised, for itself, its successors and assigns to construct the permanent open park as shown in the approved plans, to devote the area bounded by Broadway, Liberty Street, Trinity Place and Cedar Street completely to plaza use, and not to erect any structures on that area without the prior consent of the City Planning Commission.

53. U.S. Steel also promised to comply with all Federal, State and municipal laws, ordinances and regulations that were then in effect or that might be enacted thereafter affecting the terms and conditions of the agreement.

54. U.S. Steel further agreed that in any conveyance it made of the premises, it would obligate the grantee to assume and comply with all the terms and conditions of the agreement as though such grantee were a party thereto. See Exhibit C (U.S. Steel Agreement).

55. U.S. Steel created the park and opened it to the public under the name Liberty Plaza in 1972.

56. The building now known as One Liberty Plaza opened in 1973.

57. The property including the building and the park was subsequently bought by Merrill Lynch, then by Olympia & York and most recently prior to November 14, 2011, by Brookfield Properties (“Brookfield”).

58. The park was heavily damaged on September 11, 2001 and, following substantial renovation, was reopened by Brookfield as “Zuccotti Park” on June 1, 2006.

59. City of New York Special Zoning Permit, CP-20222, No. 4, p.215 (March 20, 1968) (“CP-20222”) (requiring Zuccotti Park to be a “permanent open park” for the “public benefit”), attached as Exhibit B, and U.S. Steel Agreement with the City of New York dated May 13, 1968, Exhibit C, comprised a written agreement.

60. CP-20222 memorialized an agreement between U.S. Steel, and its successors, and Defendant City of New York.

61. CP-20222 conferred a benefit on members of the public, including Plaintiffs.

62. The benefit CP-20222 conferred included the right of access to Zuccotti Park “at all times,” that is, 24 hours a day, 365 days a year.

63. As de facto third party beneficiaries, members of the public, including Plaintiffs, participated in the agreement between the Park’s owner and Defendant City of New York by gaining their own rights to Zuccotti Park.

64. CP-20222 , as set forth above, created an express easement granting the public, including Plaintiffs, access to Zuccotti Park 24 hours a day, 365 days a year.

65. CP-20222 also stated that Zuccotti Park must be maintained “as a permanent open park ... for the public benefit.”

66. The intention of the owner and Defendant City of New York in agreeing to the terms set forth in CP-20222 was that Zuccotti Park be used as a permanent open park for public’s, including Plaintiffs’, use.

iii. Applicable New York Zoning Resolution Provisions

67. On September 19, 2007, the City Planning Commission of the City of New York adopted resolution N O7O497 ZRY, which codified rules

governing the operation of public plazas in New York.

68. Brookfield, the owner of One Liberty Plaza was a successor of U.S. Steel, and therefore bound by the promises made by U.S. Steel in 1968 to comply with the regulatory scheme in effect for Zuccotti Park on November 14, 2011.

69. That regulatory scheme included 2007 provisions of the Zoning Resolution, as set forth below, requiring that Zuccotti Park “shall be accessible to the public at all times” except where restriction of access has been authorized by the City Planning Commission.

70. At all times pertinent to this Amended Complaint, Zuccotti Park was a POPS. See Department of City Planning Website, Privately Owned Public Space History, listing Zuccotti Park as a Downtown Manhattan POPS, attached as Exhibit D.

71. Zuccotti Park was a “public plaza”, as that term was used and defined by the Zoning Resolution. See Zoning Resolution 37-70 attached as Exhibit E (defining “Public plazas” as “open areas on a zoning lot intended for public use and enjoyment.”); City of New York Special Zoning Permit, CP-20222, No. 4, p.215 (March 20, 1968) (“CP-20222”) (requiring Zuccotti Park to be a “permanent open park” for the “public benefit”), attached as Exhibit B; see Zoning Handbook, co-authored by Defendant City of New

York (stating that “In 2007, all previous design regulations for outdoor POPS were updated and consolidated into one outdoor plaza designation –the *public plaza*”).

72. With regard to the day-to-day management of POPS defined as “public plazas”, including Zuccotti Park as set forth above the Zoning Resolution provided that “public plazas shall be accessible to the public at all times, except where the CPC has authorized a nighttime closing.” See NYC Zoning Resolution § 37-727, Exhibit E.

73. Even with regard to the day-to-day management of POPS defined as “plazas”, (rather than as “public plazas”), and particularly with regard to those for which, like Zuccotti Park, a floor area bonus had been received, the Zoning Resolution provided that the provisions of § 37-727 concerning accessibility and nighttime closing, also applied. See Zoning Resolution §37-10 (defining “plaza” as “an open area accessible to the public at all times ...”); § 37-623, Exhibit E and , CP-20222, No. 4, p.215 (March 20, 1968), Exhibit B (granting floor area bonus).

74. The Zoning Resolution vested the CPC with the sole authority to authorize restrictions to public access, and, as set forth below mandated compliance with procedural safeguards before the CPC could approve any such restrictions.

75. The CPC was precluded from authorizing any such restriction of a POPS unless the private owner provides documented evidence of “significant” safety issues and the CPC determined, based on the submitted evidence, that such restriction was “necessary for public safety . . . as documented by the applicant.” Zoning Resolution 37-727 (b), See Exhibit E.

76. These requirements limited the circumstances under which the CPC could authorize any limitations on 24-hour public access and allow it to determine, based on a written record, whether the private owner’s request to otherwise restrict access was adequately justified.

77. These procedural requirements also ensured that the beneficiaries and users of these spaces—the public, including Plaintiffs—had notice and the ability to comment before a private owner took actions that would restrict their 24-hour access to a POPS.

78. Because a request to the CPC by a private owner to restrict access had to be scheduled for a public CPC hearing, anyone wishing to speak about the proposed modification was permitted to do so at the hearing or to submit written comments. See NYC Rules §§ 1-01(a), (m), (n); 2- 03(d)(2), attached as Exhibit E.

79. The borough president and community board affected by the proposed changes were also given notice and the opportunity to comment,

further protecting the public interest against any unjustified closings or restrictions to a POPS based solely on the interests of the private owner. See NYC Charter § 206(c), attached as Exhibit E.

80. The Zoning Resolution provided that the above-stated administrative approval process was mandatory and that it was the only means by which the public's right to access a POPS can be limited. See NYC Zoning Resolution § 37-727, attached as Exhibit B.

81. As set forth hereinabove, the City's review-and-approval control over any limits on 24-hour use of Zuccotti Park rendered the nonparty private owner powerless to extinguish or alter Plaintiffs' rights, as set forth hereinabove.

82. The Zoning Resolution also provided for prominently-posted signs providing notice of any rules that limited or restricted otherwise lawful conduct in Zuccotti Park. § 37-752. See Exhibit E.

83. Furthermore, pursuant to common practice, custom, and usage, all such park rules were stated on prominently-posted signs.

84. Accordingly, any reasonable person, including Plaintiffs and Defendants, knew that the expression of any such purported rule, merely orally or merely on paper, without a sign being posted, particularly where such expression was not accompanied by a warning that a failure to comply

might result in arrest or forcible removal from the park, was not a proper, lawful, legally-effective, adequate, credible, or enforceable form of notice as to such purported rule, and could properly and lawfully be treated simply as a request for voluntary compliance, to be obeyed, ignored or disputed as a matter of choice.

85. Plaintiffs knew that on multiple occasions prior to November 14, 2011, Defendants and Brookfield had previously expressed purported rules, merely orally or merely on paper, without a sign being posted, and without a warning that a failure to comply might result in arrest or forcible removal from the park, and persons in Zuccotti Park had properly and lawfully treated these expressions simply as a request for voluntary compliance which they had ignored or disputed without any adverse consequences.

86. The above-described incidents, along with their knowledge of the applicable provisions of the Zoning Resolution, further reinforced and justified Plaintiffs' knowledge and reasonable belief that Defendants' or Brookfield's expression of purported rules, merely orally or merely on paper, without a sign being posted, was not a proper, lawful, legally-effective, adequate, credible, or enforceable form of notice as to such purported rule.

iv. Traditional Public Forum

87. Zuccotti Park had traditionally been available for public expression.

88. Zuccotti Park had as a principal purpose the free exchange of ideas.

89. The full exercise of First Amendment rights was consistent with the interests of the government in overseeing its use, as set forth above.

90. Zuccotti Park was specifically designated a public park by Defendant City, through express provisions in a legislative enactment, as set forth above.

91. Zuccotti Park was also specifically designated a public park by Defendant City, through its continued use as a public park.

92. Defendant City had not affirmatively demonstrated an intent not to treat the Plaza as it would a typical city park.

93. Zuccotti Park was a public place that was a hybrid of a park, sidewalk, and public thoroughfare.

94. Zuccotti Park was continuously open.

95. Zuccotti Park constituted a necessary conduit in the daily affairs of the locality's citizens.

96. Zuccotti Park was a place where people could enjoy the open air.

97. Zuccotti Park was a place where people could enjoy the company of friends and neighbors in a relaxed environment.

98. Zuccotti Park's physical location distinguished it as a typical recreational park or town square.

99. Zuccotti Park was one of the few open spaces with tables and seats in the Financial District.

100. Zuccotti Park's northwest corner was across the street from Four World Trade Center.

101. Zuccotti Park was popular with local tourists and financial workers.

102. Zuccotti Park historically was used as a public forum.

103. Zuccotti Park was the location of the first coffeehouse in colonial New York City, The King's Arms.

104. On November 5, 1773, summoned by the Sons of Liberty, a huge crowd assembled outside the King's Arms coffee house in what is now Zuccotti Park to denounce the Tea Act, and agents of the East India Trading company who were handling cargoes of dutied tea. This was one of the first public demonstrations in opposition to the Tea Act in the American colonies.

105. Following the 9/11 attacks The World Trade Center cross, which was previously housed at St. Peter's Roman Catholic Church, was featured in

a ceremony held in Zuccotti Park before it was moved to the 9/11 Memorial.

106. Zuccotti Park was a popular destination for tourists visiting Ground Zero.

107. Zuccotti Park was a public pedestrian mall.

108. Public pedestrian malls are the type of property traditionally used as a public forum.

109. No walls or fences bordered Zuccotti Park.

110. Zuccotti Park constituted a widening and extension of public sidewalks on all four sides.

111. Zuccotti Park was a public thoroughfare.

112. Zuccotti Park was not merely a short-cut between surrounding streets as an incidental feature of its principal function as an entrance plaza to some other, nearby area or structure.

113. Zuccotti Park was used for open public access.

114. Zuccotti Park's use was inherently compatible with expressive activity.

115. Zuccotti Park's name identified it as a park.

116. Like any public park, Zuccotti Park contained trees.

117. Like any public park, Zuccotti Park contained benches.

118. By agreeing to preserve and maintain Zuccotti Park's character

as a traditional public forum under the U.S. Constitution First Amendment, an agreement legislatively enacted by the City of New York, Zuccotti Park’s owners, beginning in 1968, and their successors, established and continued to grant an easement, benefiting the people of New York and visitors to the City of New York, including Plaintiffs, consisting of a right to engage in First Amendment activity in Zuccotti Park, without restriction issued or enforced by government officials, unless such restrictions were narrowly tailored to serve the government’s legitimate, content-neutral interests.

3. Plaintiffs’ 14th Amendment Property Interest and 4th Amendment Privacy Expectation Secured by Existing Understanding

a. Statement of Mayor Bloomberg

119. On October 10, 2011, Defendant Michael Bloomberg, as Mayor of the City of New York, caused to be printed and published for review by the general public, including Plaintiffs, a statement that Plaintiffs could not lawfully be removed from Zuccotti Park. See “Bloomberg: Occupy Wall Street Can Stay Indefinitely”, Wall Street Journal, October 10, 2011, attached as Exhibit G.

120. **This statement represented, expressed, and acknowledged Defendants' and Plaintiffs' existing understanding of Plaintiffs' property interest in their residences in Zuccotti Park.**

4. Plaintiffs' Homes

a. All Plaintiffs

121. Dozens of OWS supporters, **including Plaintiffs**, were living, some continuously, others for various periods of time, in tents in the Park, or sleeping bags in the open air, and had fabricated living quarter facilities, including a kitchen and library, while remaining assembled in protest, discussion, performance, and displays of art, for observers passing by the Park, or via broadcast and internet media around the world.

122. **Plaintiffs'** activities, which were abundantly written about, video-recorded and photographed by members of the local and international press and media, were a vigorous exercise of First Amendment rights in a public space, and included overtly expressive signs, artwork, and speech, as well as expressive activities, including their assembly and presence in Zuccotti Park, sleeping in Zuccotti Park, and residing in Zuccotti Park, over a period of months. Their

expressive conduct, including their continued, collective physical presence in the Park, expressed and was understood by observers there and around the world to express the OWS message of protest against government collusion in corporate gain at the expense of humanity and values dear to civilized human culture.

123. Plaintiffs’ particularized message, understood around the world, was substantially communicated by the location of Zuccotti Park, two blocks north of Wall Street and the New York Stock Exchange, an actual, as well as historically symbolic, global nexus of the corporate power that message criticized.

124. At all times pertinent to this Amended Complaint, camping, including with the use of tarps, sleeping bags, bedrolls, and tents (“Camping”) was lawful in Zuccotti Park.

125. Zuccotti Park was privately-owned property and no law prohibited Camping on privately-owned property.

126. No Plaintiff was arrested, charged, or convicted, on a charge of engaging in a Camping activity.

127. A sign posted by the owner of Zuccotti Park, Brookfield, within seven days after November 14, 2011, indicated, acknowledged, and admitted, that Camping was lawful in Zuccotti Park.

128. Zoning Resolution § 37-752 only permitted Brookfield to post a

sign prohibiting conduct in Zuccotti Park, which was lawful conduct under state and federal law, e.g., skateboarding. See Exhibit E.

129. Within seven days after November 14, 2011 Brookfield prominently posted such a sign, compliant in all regards with the design and posting requirements of Zoning Resolution § 37-752, prohibiting Camping.

130. From the date that they commenced their residence in Zuccotti Park until their eviction on or about the early morning of November 14, 2011, Plaintiffs Charles Meyers, Justin Strekal and Miles Walsh (the “Named Plaintiffs”) lived in Zuccotti Park.

131. During that period, the Named Plaintiffs had no other residence.

132. During that period, the Named Plaintiffs had no knowledge of, or expectation of the termination of his residence in Zuccotti Park on any date certain.

133. On or about October 18, 2011, the Named Plaintiffs knew and reasonably believed that it was lawful to reside in a tent in Zuccotti Park.

134. During the period of time pertinent to this Amended Complaint and prior to October 18, 2011, on at least one occasion, snow fell in New York City and Zuccotti Park.

135. Beginning on or about October 18, 2011, a prohibition against the use of sleeping bags, bedrolls, tarps, or tents, would have substantially limited

and impaired 24 hour access to Zuccotti Park.

136. On or about October 18, 2011, unidentified third parties donated a number of tents to persons residing in Zuccotti Park, including Plaintiffs, for their ownership, possession, and use in Zuccotti Park.

137. These tents were given without limitation or condition and became the personal property of those Plaintiffs who obtained the from a nearby distribution point in the United Federation of Teachers (UFT) facility in a building at 52 Broadway, New York, NY.

138. During the period that they were residents of Zuccotti Park, as set forth below, to November 14, 2011, the Named Plaintiffs and all Plaintiffs knew and reasonably believed that neither Brookfield Properties nor Defendants could lawfully issue or enforce rules interrupting, limiting, or impairing, directly or indirectly, the 24-hour access by any member of the public, including the Named Plaintiffs and all Plaintiffs, without complying with an administrative hearing procedure of which he must be notified in advance.

139. During the period that they were residents of Zuccotti Park, as set forth below, to November 14, 2011, the Named Plaintiffs and all Plaintiffs knew and reasonably believed that neither Brookfield Properties nor Defendants had in fact complied with an administrative hearing procedure

seeking permission or making application to issue or enforce such rules as described above.

140. During the period that they were residents of Zuccotti Park, as set forth below, to November 14, 2011, the Named Plaintiffs and all Plaintiffs knew and reasonably believed that neither Brookfield Properties nor Defendants could lawfully issue or enforce rules interrupting, limiting, or impairing, directly or indirectly, the 24-hour access by any member of the public, including himself and all Plaintiffs, without prominently posting such rules at an entrance to the park. Zoning Resolution § 37-352, Exhibit E.

141. During the period that they were residents of Zuccotti Park, as set forth below, to November 14, 2011, the Named Plaintiffs and all Plaintiffs knew and reasonably believed that neither Brookfield Properties nor the city of New York had in fact prominently posted such rules at an entrance to the park.

142. At no time pertinent to this Amended Complaint, did any Defendant, agent or employee of Defendants, nor Brookfield, nor any agent or employee of Defendant, directly or indirectly, orally or in writing, or in any manner whatsoever, notify or inform any Plaintiff, that new or modified rules provided permission or authority to Brookfield or Defendants to issue or enforce rules that would substantially limit or impair Plaintiffs' 24-hour right

to enter and remain in Zuccotti Park, for purposes of cleaning, maintenance, rule enforcement, or any other purpose, without first complying with Zoning Resolution provisions requiring that any such rules first be approved following the administrative hearing process as set forth above, or without first complying with zoning resolution provisions requiring that any such rules be prominently posted at an entrance to the park, as set forth above.

143. At no time pertinent to this Amended Complaint, prior to November 14, 2011, did any Defendant, agent or employee of Defendants, nor Brookfield, nor any agent or employee of Defendant, directly or indirectly, orally or in writing, or in any manner whatsoever, notify or inform any Plaintiff, that a new or modified rule or rules provided that a failure by a Plaintiff to obey any purported rule, order, or demand concerning lawful conduct in Zuccotti Park issued by Brookfield or Defendants could result in any Plaintiff's arrest or eviction.

144. During the period that they were residents of Zuccotti Park, as set forth below, the Named Plaintiffs knew and reasonably believed that the City of New York through its NYPD officers, acknowledged their lawful right to reside in Zuccotti Park for a period of time with no termination date.

145. During the period that they were residents of Zuccotti Park, as set forth below, the Named Plaintiffs knew and reasonably believed that the City

of New York, through its City Planning Commission and Zoning Resolution, and Brookfield Properties, as set forth above, acknowledged their lawful right to reside in Zuccotti Park for a period of time with no termination date.

146. During the period set forth above, the community of other persons also residing at the same time in Zuccotti Park, acknowledged, supported, and agreed to the Named Plaintiffs' right to reside in Zuccotti Park, in the specific Park locations described below, for a period of time with no termination date.

147. During the period set forth above, all persons who temporarily entered Zuccotti Park, including police and civilian visitors, acknowledged the Named Plaintiffs' right to reside in Zuccotti Park, in the specific Park locations described below, for a period of time with no termination date.

148. During the period set forth above, the Named Plaintiffs and each of them freely exercised the right to admit or exclude persons from the specific Zuccotti Park locations where they resided as described below.

149. During the period set forth above, the Named Plaintiffs and each of them freely exercised the right to keep their household possessions, as described below, safe and secure within the specific Zuccotti Park residential locations described below, when they were personally absent from said locations.

150. The Named Plaintiffs and each of them routinely obtained their meals from donated food, distributed by a kitchen permanently established within the boundaries of Zuccotti Park, and consumed the food within the boundaries of Zuccotti Park.

151. On November 14, 2011, Defendants used bullhorns to order Plaintiffs to leave and abandon their homes, or face arrest.

152. On November 14, 2011, half-blinded by powerful searchlights projected into Zuccotti Park by Defendants, the Named Plaintiffs observed that the tents of persons residing in Zuccotti Park, including their own, were being destroyed by Defendants and agents of Defendants, including city sanitation workers, using dangerous edged tools, including but not limited to knives, and they were compelled by the orders and actions of defendants for their personal safety to abandon their tents with their household property in their personal possession.

153. Within a period thereafter of about 30 minutes, Defendants and their agents, as set forth above, cut down, seized and destroyed the Named Plaintiffs' tent residences.

154. In the course of arresting Plaintiffs, Defendants took from their personal possession and seized all of the property they had on their persons, including their household property.

b. Plaintiff Charles Meyers

155. Plaintiff Charles Meyers began living in Zuccotti Park on or about October 13, 2011.

156. From October 13, 2011 until on or about October 25, 2011, plaintiff Charles Myers resided constantly within the boundaries Zuccotti Park using a sleeping bag, under one of the tables in the park.

157. On or about October 25, 2011, Plaintiff Charles Meyers obtained a donated tent.

158. Said tent was a commercially made, nylon, two-person, camping tent, height about 4 feet, floor space about 24 square feet, with a flat door that could be closed, covered with an additional blue colored tarp, measuring 100 square feet.

159. He slept in said tent each night during the period of on or about October 25, 2011 to November 14, 2011.

160. During the period of October 13, 2011 to November 14, 2011, he maintained within the confines of his household, whether under a table or in a tent, possessions consisting of a toothbrush, a notebook, a camcorder type video camera, a cell phone, a 60-litre camping backpack with an internal

frame and multiple changes of clothes.

161. On the night of November 14 20 11th, when defendants, as set forth above, announced through bullhorns that plaintiffs must evacuate the park and that their right of 24 hour access to Zuccotti Park was interrupted and suspended, Plaintiff Charles Myers was present in his tent.

c. Plaintiff Justin Strekal

162. Plaintiff Justin Strekal began living in Zuccotti Park on or about October 1, 2011.

163. From October 1, 2011 until on or about October 18, 2011, Plaintiff Strekal resided constantly within the boundaries Zuccotti Park.

164. On or about October 18, 2011, Plaintiff Justin Strekal obtained a donated tent.

165. Said tent was a commercially made, nylon, Coleman brand dome-shaped 4-person tent, colored orange and gray, dome tent, height about six feet, floor about 49 square feet, made of nylon, with zippered fly-type window and door that could be closed.

166. He shared said tent with one other person, also permanently residing in Zuccotti Park.

167. Said tent was located within Zuccotti Park, in the center of the Park, adjacent to the sidewalk.

168. He routinely slept in said tent each night during the period of on or about October 18, 2011 to November 14, 2011.

169. During the period of on or about October 1, 2011 to November 14, 2011, he maintained within the confines of his household, with or without a tent, possessions consisting of a duffel bag, multiple changes of clothing, posters, flyers, sleeping bag, tooth brush, comb, mouth wash, and books, pad and paper, pillow, hand warmers, and, after obtaining a tent, a cot bed.

170. On the night of November 14, 2011, when defendants, as set forth above, announced through bullhorns that Plaintiffs must evacuate the park and that their right of 24 hour access to Zuccotti Park was interrupted and suspended, Plaintiff Justin Strekal was at an office two blocks away.

171. He received notice that police were amassing and returned to Zuccotti Park.

172. He walked around the park giving out speaking to other Plaintiffs, then sat down in the center of the park, where the kitchen was located, about 60 feet from his tent, from where he could see his tent.

173. He then saw police pull his tent down.

d. Plaintiff Miles Walsh

174. Plaintiff Miles Walsh began living in Zuccotti Park on or about September, 2011.

175. From September until on or about October 18, 2011, Plaintiff Walsh resided constantly within the boundaries Zuccotti Park.

176. On or about October 18, 2011, Plaintiff Miles Walsh obtained a donated tent.

177. Said tent was a commercially made, 2 or 3-person tent, five feet or less in height, with 36 square feet of floor space.

178. Plaintiff Walsh shared said tent with one other person also permanently residing in Zuccotti Park.

179. Plaintiff Miles Walsh routinely slept in said tent each night during the period of on or about October 18, 2011 to November 14, 2011.

180. During the period of on or about October 1, 2011 to November 14, 2011, he maintained within the confines of his household, with or without a tent, possessions consisting of a light snacks in the tent such as protein bars, a battery-powered electric lantern, a knapsack, multiple changes of clothing, deodorant, toothbrush a book of poetry by William Blake and a notebook.

181. On the night of November 14, 2011, when defendants, as set forth

above, announced through bullhorns that Plaintiffs must abandon their homes and evacuate the park and that their right of 24 hour access to Zuccotti Park was interrupted and suspended, Plaintiff Miles Walsh was in his tent reading, trying to go to sleep.

4. Pre-Arrest

182. The Defendants knew that the demonstrators were engaged in activities protected by the First and 14th Amendments to the U.S. Constitution.

183. The circumstances precluding a lawful arrest included the following:

184. The PLAINTIFFS were in compliance with the Park rules, which provided for the park to be open to the public 24 hours a day, every day of the year.

185. Defendant CITY OF NEW YORK, through its mayor, Defendant BLOOMBERG, and NYPD Commissioner KELLY, had publicly announced that so long as the camping demonstrators continued to obey the law they must and would be allowed to stay in the park.

186. Defendants CITY OF NEW YORK; BLOOMBERG, ESPOSITO, KELLY, YNOA, ZARANIS, DUBOVICI and Officer DOES 1-100 (the “DEFENDANTS”) failed to obtain a court order or warrant of eviction prior to

evicting the PLAINTIFFS as required by New York Real Property Section 235.

187. The DEFENDANTS and the park's private owners failed to obtain or confirm approval from the New York City Planning Commission to modify the rules of the park which made it publicly available at all times, prior to suspending or modifying those rules to evict the PLAINTIFFS, as required by agreement between the park's private owners, and the CITY OF NEW YORK.

188. The DEFENDANTS failed to provide PLAINTIFFS with notice or an opportunity to be heard prior to the Eviction as required by the Due Process component of the US Constitution 14th Amendment.

189. Accordingly, the PLAINTIFFS had a reasonable belief that, having lawfully entered, and following announcements by New York City officials that they could remain in the park, that they were lawfully remaining in the park (as in fact they were), and therefore PLAINTIFFS could not have committed a trespass under New York PL § 140.05¹, which requires the trespasser to knowingly enter or remain unlawfully in the subject premises.

190. There was, therefore, no reasonable basis for Defendants CITY OF NEW YORK, BLOOMBERG, KELLY, or ESPOSITO, or any of the individual officer defendants, to believe that the PLAINTIFFS were, at the time of the Eviction and arrests, committing the crime of Trespass under New York PL §

¹ A person is guilty of trespass when he knowingly enters or remains unlawfully in or upon premises.

140.05.

191. There was also no reason for the arresting officers to believe at the time of the Eviction and arrests, that there was anyone in the area who could be annoyed by the PLAINTIFFS conduct, other than police.

192. There was thus no basis for an arrest on the charge of Disorderly Conduct (New York PL § 240.20)². Because arrest under that statute requires, at minimum, evidence of the possibility of causing annoyance to a member of the public, the absence from the general vicinity of anyone who might be annoyed was fatal to the lawfulness of an arrest on that basis, as any reasonable officer would know.

193. Even if there had been a reasonable basis for an arrest on a charge of Trespass or of Disorderly Conduct, the ongoing nature of the PLAINTIFFS' presence in the park left DEFENDANTS ample opportunity to obtain a court order for their eviction or arrest, as required under such circumstances by the Fourth Amendment, and by the procedural due process component of the 14th Amendment

² § 240.20 Disorderly conduct.

A person is guilty of disorderly conduct when, with intent to cause public inconvenience, annoyance or alarm, or recklessly creating a risk thereof:

1. He engages in fighting or in violent, tumultuous or threatening behavior; or
2. He makes unreasonable noise; or
3. In a public place, he uses abusive or obscene language, or makes an obscene gesture; or
4. Without lawful authority, he disturbs any lawful assembly or meeting of persons; or
5. He obstructs vehicular or pedestrian traffic; or
6. He congregates with other persons in a public place and refuses to comply with a lawful order of the police to disperse; or
7. He creates a hazardous or physically offensive condition by any act which serves no legitimate purpose.

Disorderly conduct is a violation.

to the U.S. Constitution.

194. PLAINTIFFS were engaged in First Amendment-protected association and expression activities in Zuccotti Park.

195. Zuccotti Park was a traditional public forum for First Amendment purposes.

196. All those present in the park, other than police, or representatives of the news media, were expressing an opinion in support of the Occupy Wall Street movement and its protest against government facilitation of financial inequality.

5. Arrests

197. On or about 1:00 A.M. in the early morning of November 15, 2011, NYPD officers made an announcement by bullhorn to those in the Park, ordering them all to leave, taking their personal possessions.

198. About one hour later, Defendant NYPD officers made a decision to proceed with an unlawful eviction and arrests.

199. Said decision was made by each individual officer using his own independent authority and independent judgment and in compliance with decisions and orders made by DOE NYPD defendant command officers and by Defendants BLOOMBERG, KELLY and ESPOSITO, on behalf of, and as an official or

unofficial policy of Defendant CITY OF NEW YORK.

200. NYPD officer Defendants YNOA, FRANCOIS, ZARANIS, DUBOVICI and DOES 1-100 approached and contacted the plaintiffs, and physically restrained them, or, while in the immediate vicinity, issued orders to subordinate officers to do so.

201. Thereafter Defendant NYPD Patrol Officers FREDDY YNOA Shield 18851, HANS FRANCOIS Shield 25825, JOHN ZARANIS, Shield 09645 and DOES 1-100 caused PLAINTIFFS BAKER (by Defendant YNOA), MEYERS (by Defendant ZARANIS), STREKAL (by Defendant DUBOVICI) and WALSH (by Defendant FRANCOIS) to be imprisoned for a period of time in excess of 1 hour.

202. Thereafter, the DEFENDANTS caused knowingly false criminal charges to be filed against PLAINTIFFS, which required them to make court appearances or remain subject to court jurisdiction and an order to appear in connection with those charges for a period of months subsequent to arraignment and prior to their ultimate dismissal, but which resulted in termination of the charges favorable to the PLAINTIFFS.

203. The criminal charges were maliciously initiated by DEFENDANTS without probable cause, knowing them to be false; in retaliation against the PLAINTIFFS for their exercise of First Amendment rights; for their presence in Zuccotti Park against the wishes of the DEFENDANTS; for their failure to obey

NYPD officer orders with the level of respect and subservience DEFENDANTS felt they should show; and for their political views.

204. PLAINTIFFS had for more than 30 days collectively occupied shelters and buildings in the form of tents and other structures with walls and roofs intended for habitation and used by them as their homes for an indefinite period of time.

205. PLAINTIFFS' eviction and arrests were made without probable cause to believe that any crime had been committed by them, or any other lawful basis for their arrests, and were in violation of PLAINTIFFS' rights under the Fourth Amendment to the U.S. Constitution. No objectively reasonable officer or official with knowledge of these circumstances could have participated or caused or approved or ratified this conduct without knowing it constituted violations of clearly established law.

206. The false arrests, imprisonments, and prosecutions of PLAINTIFFS as set forth above were intended to punish PLAINTIFFS for their exercise of their rights to freedom of speech and expression under the First Amendment to the U.S. Constitution, and their rights of association under the First and Fourth Amendments to the U.S. Constitution.

207. The false arrests and imprisonments of PLAINTIFFS immediately terminated their First Amendment activities as set forth hereinabove.

208. The false arrests, imprisonments and prosecutions of PLAINTIFFS were intended to and foreseeably would discourage and “chill” PLAINTIFFS or any person of reasonable firmness who wishes to engage in free speech expressive and associational activities from engaging in the exercise of those rights. The actions of DEFENDANTS as set forth above were in violation of the First and Fourteenth Amendments to the U.S. Constitution. No objectively reasonable officer or official with knowledge of the circumstances could have participated or caused or approved or ratified this conduct without knowing it constituted violations of clearly established law.

209. The Eviction occurred without notice to plaintiffs of a hearing, or an opportunity to participate in such hearing, in violation of the procedural due process guarantee of the US Constitution 14th Amendment.

210. No individual Defendant has received any reprimand or other discipline as a result of the unlawful actions in violation of the US Constitution as set forth hereinabove.

CITY POLICY

211. Defendant CITY, through its preparation and issuance of both formal and informal orders and directives, by and through senior officials including

Defendants BLOOMBERG, KELLY and ESPOSITO, and through its formal and informal monitoring of officer activities, both mandated and was aware of the false arrests and malicious prosecutions of persons engaged in First Amendment activity in the public spaces of New York City, such as PLAINTIFFS herein, and both caused, and failed to take sufficient steps to prevent, unlawful stops, arrests, imprisonments, and malicious prosecutions, including that of PLAINTIFFS as set forth herein.

212. The CITY was also aware and should have also been aware of the failure of the DEPARTMENT to bring disciplinary charges against those officers who sanction or ignore unlawful stops, arrests, imprisonments and prosecutions, to punish officers that sanction and/or cover up such unlawful stops, arrests, imprisonments and prosecutions, and to discourage others from doing so.

213. All of the aforementioned acts and omissions of defendants CITY OF NEW YORK, BLOOMBERG, KELLY, ESPOSITO, NYPD Patrol Officers FREDDY YNOA Shield 18851, HANS FRANCOIS Shield 25825, JOHN ZARANIS, Badge 09645, VASILE DUBOVICI Shield 28892, and NYPD Officer DOES 1-100, their agents, servants and employees, were carried out under the color of state law.

214. All of the aforementioned acts of the DEFENDANTS deprived the PLAINTIFFS of the rights, privileges and immunities guaranteed to citizens of the

United States by the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983, as explained herein.

215. The acts complained of were carried out by the aforementioned DEFENDANTS with all the actual and/or apparent authority attendant to official police.

216. The acts complained of were carried out by the DEFENDANTS pursuant to the customs, usages, practices, procedures, and the rules maintained by CITY OF NEW YORK and NYPD, all under the supervision of ranking officers of said NYPD, including Defendants KELLY and ESPOSITO, and the Mayor of the CITY OF NEW YORK, Defendant BLOOMBERG.

217. The DEFENDANTS, collectively and individually, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

218. This unlawful policy and conduct was the direct, proximate and foreseeable cause of the damages, harms and injuries to PLAINTIFFS as set forth herein.

QUALIFIED IMMUNITY

219. No objectively reasonable, properly-trained and disciplined officer or official with knowledge of the circumstances could have participated or caused or approved or ratified the conduct of DEFENDANTS as set forth hereinabove without knowing it constituted violations of clearly established law.

220. Qualified immunity does not shield Defendant CITY OF NEW YORK, regardless of whether it shields any individual Defendant herein.

CLASS ACTION ALLEGATIONS

221. On or about 2:00 AM November 15, 2011, at Zuccotti Park in downtown New York City's borough of Manhattan, PLAINTIFFS, including all members of the plaintiff class, were present in Zuccotti Park; were falsely arrested and imprisoned during and after the Eviction and as a result of the Eviction; and were maliciously prosecuted on the basis of knowingly false criminal charges, in retaliation for their lawful conduct and political views, in criminal proceedings that resulted in dispositions favorable to them, as set forth herein.

222. The proposed class and their claims satisfy the requirements of Fed.R.Civ.Pro. Rule 23(b)(3) and/ or, Rule 23(b)(2).

223. The proposed class of persons, which is composed of approximately 100+ persons, is too numerous for joinder.

224. The NYPD acted according to Defendant CITY OF NEW YORK'S official and unofficial policy, as set forth herein, and in so doing acted on grounds that apply generally to the class.

225. The eviction and arrests were in violation of the class's (a) U.S. Constitution Fourth Amendment rights against unlawful seizure; (b) U.S. Constitution First Amendment rights of speech and assembly; and (c) U.S. Constitution 14th Amendment procedural due process rights; and raise common questions of law and fact that predominate over any questions affecting only individual members.

226. The claims of the named plaintiffs are typical of the claims of the class, as the named plaintiffs were subjected to unlawful seizure and imprisonment by the DEFENDANTS, under the same circumstances and pursuant to the same orders and policies of CITY OF NEW YORK, as all members of the represented class.

227. The named plaintiffs have a strong interest in the outcome of this action, have no conflicts of interest with the plaintiff class, and will fairly and adequately protect the interests of the class.

228. If for any reason any of the named plaintiffs is unable to proceed as a class representative, they bring this action on their own individual behalf as well, as a joined individual plaintiff.

229. The named plaintiffs are represented by the undersigned counsel. Undersigned counsel has successfully litigated a complex federal court class action constitutional rights matter focused on unlawful detention without arraignment or trial. Undersigned counsel was one of the counsel of record who drafted the original complaint, and individually drafted and argued the successful class certification motion, in *Mochizuki v. U.S.*, Civil Action No. 43 Fed. Cl. 97 (1999), before the United States Court of Federal Claims for the District of Columbia (abduction from Latin America and imprisonment in U.S. detention camps of 1000+ persons of Japanese race and national origin by the U.S. government during World War II for use in hostage exchange). The Mochizuki case resulted in settlement payments to class members totaling \$5,000,000, and in a formal public apology by U.S. President Bill Clinton to the class members. Counsel for the plaintiffs has the resources, expertise and experience to prosecute this action. Counsel for the plaintiffs knows of no conflicts among members of the class or between the attorneys and members of the class.

230. A class action is superior to other available methods for the fair and efficient adjudication of this controversy. The class is readily defined, easily identifiable by reference to court and police arrest records, and prosecution of a class action will eliminate the need of repetitious litigation.

FIRST CLAIM FOR RELIEF

42 U.S.C. § 1983/ First and Fourth Amendments

Unlawful Arrest and Imprisonment

231. PLAINTIFFS repeat and reallege the foregoing paragraphs as if the same were fully set forth herein.

232. DEFENDANTS acted under pretense and color of state law and in their individual and official capacities and within the scope of their employments as NYPD and CITY OF NEW YORK officers and employees.

233. By reason of unlawfully evicting, seizing, stopping, arresting, and imprisoning, and failing to intervene to prevent such unlawful conduct, when PLAINTIFFS were engaged in speech and association activities, DEFENDANTS deprived PLAINTIFFS of rights, remedies, privileges, and immunities guaranteed to every citizen of the United States, secured by 42 U.S.C. § 1983, including, but not limited to, rights guaranteed by the First Amendment to the United States Constitution to freedom of speech and association, and rights guaranteed by the Fourth Amendment to the United States Constitution to be free from unreasonable search, seizure, arrest or imprisonment without warrant or probable cause.

234. As a direct and proximate result of the above misconduct, PLAINTIFFS were prevented from engaging in speech and expression and

associating with their friends and fellow participants in the exercise of speech and expression; and deprived of their liberty; publicly embarrassed and humiliated; suffered pain and suffering, emotional injury, and were otherwise damaged and injured.

SECOND CLAIM FOR RELIEF

42 U.S.C. § 1983/ First and 14th Amendments

Unlawful Eviction

235. PLAINTIFFS repeat and reallege the foregoing paragraphs as if the same were fully set forth herein.

236. DEFENDANTS acted under pretense and color of state law and in their individual and official capacities and within the scope of their employments as NYPD and CITY OF NEW YORK officers and employees.

237. By reason of conducting a forcible eviction of occupants of Zuccotti Park, when their presence in Zuccotti Park was an exercise of First Amendment expression and association, and failing to intervene to prevent such unlawful conduct, without providing to the PLAINTIFFS notice of or an opportunity to be heard, DEFENDANTS deprived PLAINTIFFS of rights, remedies, privileges, and immunities guaranteed to every citizen of the United States, secured by 42 U.S.C. § 1983, including, but not limited to, rights guaranteed by the procedural due

process component of the First and 14th Amendments to the United States Constitution.

238. As a direct and proximate result of the above misconduct, PLAINTIFFS were prevented from engaging in speech and expression and associating with their friends and fellow participants in the exercise of speech and expression; and deprived of their residence and liberty; publicly embarrassed and humiliated; suffered pain and suffering, emotional injury, and were otherwise damaged and injured.

THIRD CLAIM FOR RELIEF

42 U.S.C. § 1983/ Fourth Amendment

Malicious Prosecution

84. PLAINTIFFS repeat and reallege the foregoing paragraphs as if the same were fully set forth herein.

85. DEFENDANTS caused the commencement of a criminal proceeding against PLAINTIFFS.

86. Said criminal proceeding resulted in a termination favorable to PLAINTIFFS.

87. DEFENDANTS caused said criminal proceeding by filing false

charges without probable cause.

88. DEFENDANTS maliciously caused said criminal proceeding.

89. PLAINTIFFS were seized subsequent to arraignment in that they were required to personally appear at one or more court appearances or remained subject to the court's authority to command such court appearances.

FOURTH CLAIM FOR RELIEF

MUNICIPAL LIABILITY UNDER 42 U.S.C. § 1983

(PLAINTIFFS Against Defendant CITY OF NEW YORK)

90. PLAINTIFFS repeat and reallege the foregoing paragraphs as if the same were fully set forth herein.

91. The DEFENDANTS, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule maintained by the respective municipality/authority, that is, Defendant CITY OF NEW YORK and its NYPD, which is forbidden by the Constitution of the United States.

92. Defendant CITY OF NEW YORK, through the NYPD, its senior officers including Defendants KELLY and ESPOSITO, and New York City's Mayor, Defendant MICHAEL RUBENS BLOOMBERG, and acting under the

pretense and color of law, has permitted, tolerated and been deliberately indifferent to a pattern and practice of unlawful seizures, stops, arrests, imprisonments, and malicious prosecutions by city government officials and NYPD officers, including the individual DEFENDANTS. This widespread policy and tolerance of unlawful seizures, stops, arrests, imprisonments, and malicious prosecutions of persons engaged in free speech and association activities, constitutes a municipal policy, practice or custom and led to PLAINTIFFS' unlawful seizure, stop, arrest, and imprisonment.

93. By permitting, tolerating and sanctioning a persistent and widespread policy, practice and custom, pursuant to which PLAINTIFFS were subjected to unlawful eviction, seizure, stop, arrest, imprisonment and prosecution, and wrongfully deprived of their freedoms of speech and association, of their liberty and residence, as set forth hereinabove, Defendant CITY OF NEW YORK has deprived PLAINTIFFS of rights, remedies, privileges, and immunities guaranteed to every citizen of the United States, secured by 42 U.S.C. § 1983, including but not limited to, rights guaranteed by the First, Fourth, and procedural due process component of the 14th Amendments to the United States Constitution to be free from violation of their rights to free speech and association, and from search, arrest, or imprisonment without warrant or probable cause, and to due process of law.

94. At all times material to this complaint, Defendant CITY OF NEW YORK, acting through the NYPD, NYPD's senior officers including Defendants KELLY and ESPOSITO, and the CITY OF NEW YORK's mayor, Defendant BLOOMBERG, and through the individual Defendants, maintained de facto policies, practices, customs, and usages of failing to properly train, screen, supervise, or discipline employees, and of failing to inform the individual DEFENDANTS' supervisors of their need to train, screen, supervise or discipline said defendants. These policies, practices, customs, and usages were a direct and proximate cause of the unconstitutional conduct alleged herein.

95. The aforementioned customs, policies, usages, practices, procedures and rules maintained by Defendant CITY OF NEW YORK and NYPD included, but were not limited to unlawful eviction, arrest, imprisonments, and malicious prosecutions, such as PLAINTIFFS suffered.

96. The foregoing customs, policies, usages, practices, procedures and rules maintained by Defendant CITY OF NEW YORK, and NYPD were the moving force behind the constitutional violations suffered by PLAINTIFFS as alleged herein.

97. Additionally, NYPD's deliberate indifference to proper training, supervising and/or disciplining of policy-making officials, including Defendant BLOOMBERG, constituted explicit and/or tacit approval of their illegal and

unconstitutional conduct.

98. The acts complained of were a direct and proximate result of the usages, practices, procedures and rules maintained by Defendant CITY OF NEW YORK and NYPD, which constituted deliberate indifference to the safety, well-being and constitutional rights of PLAINTIFFS.

99. The foregoing customs, policies, usages, practices, procedures and rules maintained by Defendant CITY OF NEW YORK and NYPD were the direct and proximate cause of the constitutional violations suffered by PLAINTIFFS as alleged herein.

100. As a direct and proximate result of the above customs, policies, usages, practices, procedures and rules maintained by Defendant CITY OF NEW YORK and NYPD, PLAINTIFFS were prevented from engaging in speech and expression and associating with their friends and fellow participants in the exercise of speech and expression; and deprived of their residence and liberty; publicly embarrassed and humiliated; suffered pain and suffering, emotional injury, and were otherwise damaged and injured.

F. DAMAGES

101. PLAINTIFFS bring this action for compensatory damages, punitive damages and attorney's fees pursuant to 42 U.S.C. § 1983 and 42 U.S.C. § 1988 for violations of their civil rights, as said rights are secured by said statutes and the Constitution of the United States.

CONCLUSION

102. WHEREFORE, the PLAINTIFFS demand a jury trial and the following relief jointly and severally against all the defendants:

- a. Compensatory damages, in an amount to be determined by a jury;
- b. Punitive damages (except against Defendant CITY), in an amount to be determined by a jury;
- c. Costs and interest and attorney fees;

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d. Such other and further relief, including all appropriate equitable relief, as to the Court may seem just and proper.

Dated: New York, New York
November 17, 2015

/S/

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INDEX OF EXHIBITS

- A: CPC Report, Cal. No. 21, N070497 ZRY (Sept. 19, 2007) at 10
- B: City of New York Special Zoning Permit, CP-20222, No. 4, p.215 (March 20, 1968)
- C: U.S. Steel Agreement with the City of New York dated May 13, 1968
- D: Department of City Planning Website, Privately Owned Public Space History
- E: Zoning Resolution Exerpts and New York City Rules
- F: Zoning Handbook, co-authored by Defendant City of New York
- G: “Bloomberg: Occupy Wall Street Can Stay Indefinitely”, Wall Street Journal, October 10, 2011